

HEADNOTE

“An application to remove an unauthorised application to opt out pursuant to R. 5A RoP must a) either demonstrate that the person who filed the application to opt out, at the time of filing the application, was not the person shown in each national patent register for which the European patent was validated as the person entitled to be registered as the proprietor of the European patent, but that it was the applicant of the application to remove the unauthorised application to opt out, see R. 8.5(c) RoP, b) or, if the persons mentioned under a) are identical, demonstrate that at the time of filing the application to opt out, the person shown in each national patent register for which the patent was validated as the person entitled to be registered as the proprietor of the European patent, under the law of each Member State for which the European patent was validated, was not entitled to be registered as the proprietor of the patent, but that it was the applicant of the application to remove the unauthorised application to opt out, see R. 8.5(a) RoP.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Procedural order

PATENT

EP 2 581 193

Process for the manufacture of implants or intermediate products of such implants as well as implants and intermediate products obtained by such process

KEYWORDS

opt-out

application to remove an unauthorized appl...

Rule 5A

Application to remove an unauthorised application to opt out or unauthorised withdrawal of an opt-out

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patents at issue relate to processes for the manufacture of implants or intermediate products of such implants as well as implants and intermediate products obtained by such process. According to the headnotes of the decision, to remove an unauthorised opt-out application, you must show either that the person who filed the opt-out was not the registered proprietor at the time of filing, but that you were. Alternatively, if the same person is shown in the registers, you must demonstrate that this registered person was not actually entitled under Member State law to be the proprietor, whereas you were entitled to be.